

LVNV FUNDING v. COPPS

21CF13587

PLAINTIFF'S RENEWED MOTION FOR JUDGMENT ON THE PLEADINGS

This is a limited jurisdiction collections case involving a debt of \$2,793.06. Before the Court is an unopposed motion by plaintiff for a judgment on the pleadings directed at defendant's barren answer.

Plaintiff contends it is entitled to a judgment in its favor based upon defendant's non-substantive answer. Defendant filed a Judicial Council form answer, and tendered a first appearance fee, but in the answer she failed to check any of the boxes. As such, she has neither admitted anything, nor has she denied anything.

A statutory motion for judgment on the pleadings is similar to a demurrer, except that the motion (1) can be made at any time 30 days prior to the initial trial date, but (2) only after defendant has answered and (3) only on the grounds of subject-matter jurisdiction or failure to state a cause of action. (CCP §438(c)-(f).) The rules governing pleading scrutiny are the same as those applicable to demurrers. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321. See *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) The present motion is not technically based on a failure to state since defendant did not make any statements. This more properly should have been a motion to strike the answer. Nevertheless, the fact remains that defendant needs to check at least one box on her answer to put anything in issue.

The motion for judgment on the pleadings is GRANTED, but defendant shall have 30 days leave to amend to file a proper Answer. If no Answer is filed, then plaintiff may proceed via default prove-up.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.